

CONTROLLED UNCLASSIFIED INFORMATION

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☐ Yes ☒ No

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: ☐ ≤ \$750K ☐ > \$750K and ≤ \$15M ☒ > \$15M and ≤ \$100M ☐ > \$100M

Contracting Activity: 772 ESS PKS

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): FA8903-20-D-0002 - Base Realignment and Closure (BRAC) Environmental Construction Optimization Services (BECOS) Northern California Region

Program Type (PEO, Enterprise, of Operational): Enterprise

Authority:
6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ \$30,009,000 J&A Type: ☐ Class ☒ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date [REDACTED]	[REDACTED]	[REDACTED]
Date 18 Feb 2026	Contracting Officer Rita Leal 772 ESS/PKS, (380) 458-3806	Signature LEAL.RITA.A.123098496 0 Digitally signed by LEAL.RITA.A.1230984960 Date: 2026.02.18 15:52:18 -06'00'
Date [REDACTED]	[REDACTED]	[REDACTED]
Date [REDACTED]	[REDACTED]	[REDACTED]

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date [REDACTED]	[REDACTED]	[REDACTED]
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I. Agency and Contracting Activity.

The Air Force Installation Contracting Center (AFICC) 772d Enterprise Sourcing Squadron (772 ESS) is administering the Base Realignment and Closure (BRAC) Environmental Construction Optimization Services (BECOS) Indefinite Delivery/Indefinite Quantity (ID/IQ) contract on behalf of the Air Force Civil Engineering Center (AFCEC) requirement for specialized restoration and monitoring services at BRAC installations in the northern region of the State of California, specifically Castle CA, Mather CA, and McClellan CA. AFICC 772 ESS is the contracting activity responsible for the proposed contracting action described in this Justification for Other Than Full and Open Competition.

Please note: To reflect the recent FAR overhaul and the corresponding change in J&A authority, all references to the FAR 6.302-1 in the J&A template shall now correspond to the new FAR reference, FAR 6.103-1

II. Nature and/or description of the action being approved.

The proposed action is for a single Justification and Approval (J&A) to increase the existing single award IDIQ contract FA8903-20-D-0002 ceiling amount from \$90.3M to \$120,309,000. (\$30,009,000 increase). The BECOS NorCal IDIQ contract was awarded competitively as a 100% Small Business Set Aside using Best Value procedures. The Tradeoff methodology was used with past performance being weighed higher than price factors. [REDACTED]

[REDACTED] This is a Firm-Fixed Price (FFP) contract with cost elements (ODCs and Travel). The contract was awarded 26 Aug 2020 with a total ceiling of \$90.3M. The ordering period expires 25 Aug 2028, and the total period of performance is through 25 Aug 2030.

The BECOS contract provides comprehensive environmental construction and optimization services designed to achieve or accelerate Response Complete (RC) and Site Closeout (SC) in a cost-effective manner. These services are executed in accordance with applicable technical and regulatory requirements to ensure the protection of human health and the environment and to facilitate remedy optimization. The need for this ceiling increase stems from unforeseen projects and unscheduled work conditions encountered during ongoing site restoration efforts, requiring additional services beyond the initially anticipated scope, further described in Section III.

III. Description of supplies/services required to meet agency needs.

A \$30,009,000 increase is being requested for the BECOS IDIQ contract (FA8903-20-D-0002), which would raise the total contract ceiling from \$90.3 million to \$120,309,000 for the existing ordering period. This adjustment is necessary to ensure the continuation of vital environmental restoration and remediation services for the U.S. Air Force, EPA, and California State Government through the contract's end in 2030. This increase is essential because significant, unforeseen cost drivers that could not have been known at the time of award have rendered the original contract ceiling insufficient to execute vital remediation activities [REDACTED]. The need for this increase stems from unforeseen rises in labor, material, and operating costs, as well as evolving environmental regulations that have accelerated the depletion of the original funds. [REDACTED]

The scope of the work, which remains unchanged, is highly specialized, focusing on environmental construction and optimization to address soil and groundwater contamination from past Air Force activities in Northern California. This includes a comprehensive range of services such as site characterization, subsurface injections, excavation and treatment of contaminated media, long-term management, data analysis, and system construction. The contract also covers the handling of hazardous materials, regulatory interaction, and support for compliance documentation.

Recent changes to EPA regulations, particularly new, legally enforceable maximum contamination levels for certain

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chemicals established after the contract was awarded, have required additional testing and remediation efforts not originally anticipated. This ceiling increase will cover these unforeseen site conditions and regulatory demands. [REDACTED]

[REDACTED] an immediate increase is critical to ensure continuous support for vital BRAC environmental remediation activities at former McClellan, and more specifically, at former Mather and Castle AFBs, CA. State PFAS guidance and regulations have the Maximum Contamination Levels (MCLs) at 4 parts per trillion (PPT). This is a significant change from the previous MCL of 7 PPT, which was in place at the time the original ceiling was set and resulted in significant data gaps requiring additional sampling. Regional Screening Levels (RSLs) were lowered as well. The AF had not planned or programmed for such dramatic drops in these levels. This drop has expanded ongoing investigations, increased the amount of sampling to be conducted, and increased the number of impacted private homeowners found during investigations to date. The number of Point Of Entry Treatment (POET) systems (drinking water treatment systems for private home owners) also significantly increased. With this drop, the amount of O&M needed on GAC charcoal treatment systems and POET systems has also increased. The AF has spent a great deal of funding to achieve these limits, unforeseen at time of award. Additionally, the post COVID 19 environment has made every aspect of procurement more expensive, which along with significant increases in inflation, were unforeseen at time of award. Furthermore, the EPA changed the approved PFAS Analytical Method from EPA Method 537 to EPA Method 1633 in 2024. EPA Method 1633 is a method developed by the EPA to measure 40 different types of PFAS in water, soils, and tissue. EPA Method 537 analyzes 18 different PFAS for water only, while EPA Method 1633 has a more complex extraction process and stricter quality assurance. The acquisition is justified under FAR 6.103-1(c)(2) with specific exclusions, including the remediation of military munitions or radiological sites, unless otherwise identified.

The remediation efforts described above are within the general scope of the original contract in terms of type and manner and do not change the originally contemplated work required. As the efforts described are directly related to increased cost and EPA regulation, it is reasonable to anticipate a ceiling increase of this amount would be necessary to remain compliant with regulatory guidance and continue executing Task Orders at these locations.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

Pursuant to FAR 6.103-1, Cape Environmental Management, Inc. (CAPE), as the incumbent contractor, is the only source capable of providing the required services without causing unacceptable delays. The incumbent contractor's unique qualifications are not a matter of convenience but are critical to avoiding specific, unacceptable disruptions under the CERCLA framework. The assertion that only the incumbent can perform without causing unacceptable delay is based on the following:

1. **Mandatory Re-validation and Delay to the Administrative Record:** Any new contractor would be legally and professionally obligated to conduct a complete re-validation of all prior data to assume liability for the Administrative Record --the legal foundation for the Record of Decision (ROD). This is not a "learning curve" but a discrete, non-productive project phase conservatively estimated to take a minimum of 12-18 months. This re-validation period is the primary source of the unacceptable delay and would fracture the legal defensibility of the entire cleanup remedy.
2. **Immediate Risk to Public Health and Safety:** The incumbent's practical involvement in operating nearly a dozen active groundwater treatment systems is critical to fulfilling the NCP's primary mandate to protect human health. A new contractor would face a high-risk transition period where any operational error could lead to a contaminant release, placing the Air Force in immediate violation of environmental law.
3. **Guaranteed Fiscal and Programmatic Failure:** The 12-18 month delay from mandatory re-validation would make it impossible to meet binding milestones in our Federal Facility Agreements (FFAs), placing the Air Force in statutory default

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and automatically triggering "Stipulated Penalties" of thousands of dollars per day. This creates a dual financial drain: the Government would be forced to pay the new contractor for this 12-18 month duplicative effort while simultaneously paying escalating fines to regulators for the resulting non-compliance. This would rapidly exhaust the remaining [REDACTED] and guarantee a complete work stoppage across all active task orders, ensuring total programmatic mission failure.

This current contract vehicle from inception to award took approx. 19 months from Requirements Approval to Award. Re-competition with three years of the ordering period remaining would severely impact continuity of care for these sites. Not only does the current contractor monitor, mitigate, and remediate contaminants in groundwater and topsoil, they generate reports that are due at specified intervals containing information that competitors would not be given ample time to generate in a timely manner. Each of the sites under this IDIQ have environmental reports that are due every 5 years and require coordination from the Environmental Protection Agency and the State of California (Department of Toxic Substances Control and California Regional Water Control Board) Each report takes approx. 18-24 months to develop, review, edit, and approve at the agencies that have a vested stake in the report. Additionally, these reviews are required by both CERCLA/the National Contingency Plan (see CERCLA §121(c), the National Contingency Plan (NCP), 40 CFR Part 300.430(f)(4)(ii).) The data collected is Government Controlled as DFARS clauses 252.227-7022/7023 are included, however the dissemination of this data in a solicitation would only cause unnecessary delays to an already lengthy process. Thus, causing at a minimum, double the work that has been accomplished. Additionally, this data is made available to the public, which in turn helps with other requirements and future Task Orders on this IDIQ. There are multiple reports with imminent deadlines that fall within the projected 18-24 month window of a new procurement. These reports are as follows:

Monthly Consolidation Unit (CU) Operations Monthly Status Reports which are required by the Air Force Radioactive Materials Permit. This is an auditable requirement subject to corrective action from the Air Force Radioisotope Committee and potential fines from the Nuclear Regulatory Commission.

Quarterly groundwater monitoring and cap inspection reports required by record of decision (ROD) and governed by the Federal Facilities Agreement (FFA), subject to fines under the FFA if they are not provided.

Quarterly Focused Strategic Sites inspection reports, covers caps for five sites plus aspects of the CU required by ROD and governed by the FFA, subject to fines under the FFA if they are not provided.

Quarterly Groundwater Treatment Plant reports, required for compliance with California water quality regulations, subject to fines and orders to stop work from the Water Quality Control Board.

CAPE is the only source capable of providing the required specialized BRAC environmental remediation services without incurring unacceptable delays in meeting critical environmental obligations. All existing task orders under this IDIQ are associated with CAPE, who possesses unique, site-specific knowledge and expertise developed throughout contract performance. Soliciting new sources would necessitate significant rework, re-familiarization, and potential disruption to ongoing remediation activities at the locations covered under the IDIQ, leading to significant cost inefficiencies and failure to meet statutory deadlines. While CAPE may not be the only company in industry able to perform, to re-compete at this time would require hundreds, if not thousands of man hours, re-establishment of vendor relationships with local, federal, and industry partners and restarting already existing historical environmental data.

[REDACTED] Authorizing the incumbent to complete the existing, non-severable task orders is the only viable method to ensure mission continuity. [REDACTED]

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[REDACTED]

[REDACTED] This strategy ensures the government benefits from the incumbent's unique knowledge for legacy tasks while properly transitioning all new work to the upcoming vehicle, representing the most efficient use of government funds.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A Sources Sought was posted on 6 October 2025 to SAM.gov, to determine if responsible sources exist capable of providing Environmental Construction Optimization Services, and received 15 responses from interested parties. See Section IX.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

This J&A request is for an increase in the program ceiling. No actual obligations will be made until a task order is awarded. Anticipated costs for task orders executed under this program will be determined fair and reasonable, based on labor rates that were negotiated with inflation considered at the award of the basic contract. Additionally, comparative market research for ODCs and consumables [REDACTED]

[REDACTED]

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research was conducted within the last 18 months, as of 06 October 2025, to determine the interest and capability of business in the market through a Sources Sought (see Section V). 15 companies showed interest in the requirement. Results are further elaborated in Section IX.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

The unique facts supporting this request also include the incumbent's relationships, which are direct enablers of legally mandated activities. The established working relationship with local residents is essential for executing the community involvement requirements of CERCLA Section 117, specifically for gaining physical access to private property for ongoing sampling and remediation. A new contractor would have to restart this trust-building process, risking access denial. Likewise, the established rapport with EPA and state regulators is crucial for the timely negotiation and approval of legally required documents. Re-competing would risk a setback in these relationships that have taken years to establish, a process that would predictably prolong negotiation cycles and itself contribute to the unacceptable delay that this justification is required to prevent.

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IX. List of any sources that expressed, in writing, an interest in the acquisition.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The technical evaluator concluded that while 13 other firms possess general capabilities in the environmental sector, none could assume the complex, in-progress tasks without causing unacceptable delays that would place the Air Force at risk of failing to meet its statutory obligations under CERCLA and the National Contingency Plan (NCP). A new contractor would be required to perform a wholesale re-validation of existing RI/FS data to ensure the integrity of the Administrative Record and assume liability, a process that would delay critical ROD milestones. This handover would also jeopardize compliance with enforceable schedules for Five-Year Reviews and risk operational failure of active groundwater treatment systems, directly contravening the NCP's mandate to protect human health and the environment.

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- X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.**

[REDACTED]

A formal acquisition strategy has not been made public

[REDACTED] performance must continue for the active non-severable tasks associated with this IDIQ for their periods of performance. [REDACTED]

[REDACTED]

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.